

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC

RESPONDENT.

**COMPLAINANT PELOTON INTERACTIVE, INC.’S
FOURTH MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. (“Peloton”) moves pursuant to Rules 5(b) and 69 of the Federal Maritime Commission’s Rules of Practice and Procedure and the May 13, 2024 Initial Order in this proceeding (“Initial Order”) for confidential treatment of Exhibit No. 2 to Peloton’s Opposition to Respondent Flexport International LLC’s (“Flexport”) Motion for Sanctions for Failing to Comply with Discovery Orders (“Opposition”).

On December 13, 2024, Peloton and Flexport entered a Stipulation of Confidentiality (“Confidentiality Agreement”), which provides among other things, that “Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5.” *See Exhibit A* at ¶ 5.

Peloton’s Opposition includes an exhibit (Exhibit No. 2), which is a supplemental expert report by Gregory E. Smith. Confidentiality is necessary with regard to Exhibit No. 2 to Peloton’s

Opposition because it includes commercially sensitive and confidential information.

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). Here, good cause exists for protection of Exhibit No. 2, which contains commercially sensitive information related to the business dealings of the parties, including but not limited to charges and shipment information.

Pursuant to Rule 5(b), Peloton will file both confidential and public versions of Exhibit No. 2 to Peloton’s Opposition.

CONCLUSION

For the foregoing reasons, Peloton respectfully requests that the Presiding Officer grant Peloton’s motion for confidential treatment.

Dated: May 28, 2025

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: May 28, 2025

/s/ Allison Luzwick
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